ORDINANCE NO. _____

An Ordinance Vacating A Street beginning at the Southeast Corner of Lot 24 of Block 1 of Liddell's Addition to the City of Rector, run thence due West along the South Boundary Line of Lot 24 through Lot 13, inclusive, to a distance of 600 feet to the Southwest Corner of Lot 13 of Liddell's Addition, thence due straight South a distance of 60 feet to a point, thence due straight East a distance of 600 feet to a point, thence due straight North 60 feet to a point of beginning. ALSO An alley beginning at the Southeast Corner of Lot 1 of Block 1 of Liddell's Addition to the City of Rector, thence due West 600 feet along the South Boundary Line of Lot 1 through Lot 12, inclusive, to the Southwest Corner of Lot 12, thence due South to a point on the Northwest Corner of Lot 13 of Liddell's Addition to the City of Rector, thence due East a distance of 600 feet along the North Boundary Line of Lot 13 through 24, inclusive, to a point, thence due North a distance to the point of beginning, Authorizing the City Recorder to Record said Ordinance in the Deed Records of the County.

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS, AS FOLLOWS, TO-WIT:

WHEREFORE, a petition was duly filed with the City Council of the City of Rector, Arkansas, on the 3rd day of February, 2005, asking the City Council to vacate and abandon all that portion of a street and alley designated a street beginning at the Southeast Corner of Lot 24 of Block 1 of Liddell's Addition to the City of Rector, run thence due West along the South Boundary Line of Lot 24 through Lot 13, inclusive, to a distance of 600 feet to the Southwest Corner of Lot 13 of Liddell's Addition, thence due straight South a distance of 60 feet to a point, thence due straight East a distance of 600 feet to a point, thence due straight North 60 feet to a point of beginning and an alley beginning at the Southeast Corner of Lot 1 of Block 1 of Liddell's Addition to the City of Rector, thence due West 600 feet along the South Boundary Line of Lot 1 through Lot 12, inclusive, to the Southwest Corner of Lot 12, thence due South to a point on the Northwest Corner of Lot 13 of Liddell's Addition to the City of Rector, thence due East a distance of 600 feet along the North Boundary Line of Lot 13 through 24, inclusive, to a point, thence due North a distance to the point of beginning, now appearing of record in Deed Record N/A at page N/A in

the office of the Circuit Clerk and Ex-Officio Recorder for the Eastern District of Clay County, Arkansas.

WHEREAS, after due notice as required by law, the City Council has, at the time and place mentioned in the notice, heard all persons desiring to be heard on the question and has ascertained that a street and an alley or the portion thereof, hereinbefore described, has heretofore been dedicated to the public use as a street and an alley herein described; that said street and alley have not been actually used by the public generally for a period of at least five years subsequent to the filing of the plat; that all the owner of the property abutting upon the portion of a street and an alley to be vacated has filed with the Council her written consent to such abandonment; and the public interest and welfare will not be adversely affected by the abandonment of such street and alley.

NOW THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS, AS FOLLOWS, TO-WIT:

SECTION 1. The City of Rector, Arkansas, hereby releases, vacates and abandons all its rights, together with the rights of the public generally, in and to a street and an alley designated as follows:

STREET

A street beginning at the Southeast Corner of Lot 24 of Block 1 of Liddell's Addition to the City of Rector, run thence due West along the South Boundary Line of Lot 24 through Lot 13, inclusive, to a distance of 600 feet to the Southwest Corner of Lot 13 of Liddell's Addition, thence due straight South a distance of 60 feet to a point, thence due straight East a distance of 600 feet to a point, thence due straight North 60 feet to a point of beginning.

ALSO

ALLEY

An alley beginning at the Southeast Corner of Lot 1 of Block 1 of Liddell's Addition to the City of Rector, thence due West 600 feet along the South Boundary Line of Lot 1 through Lot 12, inclusive, to the Southwest Corner of Lot 12, thence due South to a point on the Northwest Corner of Lot 13 of Liddell's Addition to the City of Rector, thence due East a distance of 600 feet along the North Boundary Line of Lot 13 through 24, inclusive, to a point, thence due North a distance to the point of beginning.

SECTION 2. A copy of the ordinance duly certified by the City Recorder shall be filed in the Office of the Circuit Clerk and Ex-Officio Recorder of the county and recorder in the deed records for the Eastern District of Clay County.

SECTION 3. This ordinance shall take effect and be in force from and after its passage.

Passed and approved by the City Council of the City of Rector, this 7th day of March, 2005.

Ron Kemp, Mayor

Attest:

City Clerk